



ARBITER  
HR

A FREE QUICK REFERENCE • P1

# Final Pay & *Termination.*

*A 10-state quick reference for the moment a separation lands and the clock starts running.*

The final paycheck deadline, the required state separation form, and the most common compliance trap — for the ten states most HR teams have employees in. **Built for small HR teams doing big-company work.**

## INTRODUCTION

# Ten states. *Three answers* each.

*A working reference, not a full guide.*

For each state, you'll find the **final paycheck deadline** (separated for involuntary discharge and voluntary quit), the **required state separation form**, and the **most common compliance trap**. Three answers per state, pulled together — about thirty seconds of read time when a separation lands and the clock starts running.

## CONTENTS

|    |               |   |    |                  |   |
|----|---------------|---|----|------------------|---|
| 01 | CA California | 3 | 02 | NY New York      | 3 |
| 03 | IL Illinois   | 4 | 04 | MA Massachusetts | 4 |
| 05 | TX Texas      | 5 | 06 | FL Florida       | 5 |
| 07 | CO Colorado   | 6 | 08 | WA Washington    | 6 |
| 09 | NJ New Jersey | 7 | 10 | MN Minnesota     | 7 |

# The West Coast & The *Northeast*.

STATES 01-02 • CA, NY

## CA California

STATE 01 • OF 10

**DISCHARGE** Immediately, at the moment of termination.

**QUIT** With 72 hours' notice, on the **last day worked**. With less notice, within **72 hours** of separation.

**REQUIRED FORM** DE 2320 (For Your Benefit) delivered at separation. A written **Notice to Employee as to Change in Relationship** is also required per **Title 22 CCR § 1089-1** — no standardized state form, so employers typically use their own template.

### ! MOST COMMON TRAP

The waiting-time penalty — late final pay can compound at the employee's daily wage rate for up to 30 calendar days, and the state can assess it without the employee filing a claim.

## NY New York

STATE 02 • OF 10

**DISCHARGE** By the **regular payday** for the pay period in which separation occurred.

**QUIT** By the **regular payday** for the pay period in which separation occurred.

**REQUIRED FORM** IA 12.3 (Record of Employment) delivered to the employee at separation.

### ! MOST COMMON TRAP

The IA 12.3 is required at **every** separation — not just terminations. Reduced-hours separations (**under 30/week AND below the \$504/week gross pay threshold**) trigger the same delivery obligation, and missed delivery is among the most frequent NY DOL violations.

The Midwest & *New England.*

STATES 03-04 • IL, MA

**IL**  
Illinois

STATE 03 • OF 10

**DISCHARGE** At the time of separation, if possible; otherwise no later than the **next** regularly scheduled payday.

**QUIT** At the time of separation, if possible; otherwise no later than the **next** regularly scheduled payday.

**REQUIRED FORM** CLI111L pamphlet (*What Every Worker Should Know About Unemployment Insurance*), for anyone separated for seven or more days.

**! MOST COMMON TRAP**

The CLI111L must be delivered **in person on the last day worked**, or mailed to the employee's last known address within five calendar days of separation. Posting in the workplace does not satisfy the requirement.

**MA**  
Massachusetts

STATE 04 • OF 10

**DISCHARGE** On the day of discharge, in full, including all accrued vacation.

**QUIT** By the **next regular payday** following the separation.

**REQUIRED FORM** Form 0590-A (How to File a Claim for UI Benefits), delivered as soon as practicable and within 30 days of separation.

**! MOST COMMON TRAP**

The same-day final-pay rule on involuntary termination is one of the strictest in the country, and accrued vacation must be paid out in full on the day of discharge — separate from regular wages.

The Sun Belt & *The Gulf.*

STATES 05-06 • TX, FL

TX

Texas

STATE 05 • OF 10

**DISCHARGE** Within **six calendar days** of separation.**QUIT** By the **next regular payday**.**REQUIRED FORM** No state-required at-separation form. **TWC unemployment poster** is a workplace posting requirement, not an individual delivery.**! MOST COMMON TRAP**

The six-day window is faster than the next-regular-payday default most employers apply, and the deadline runs in **calendar days** — weekends and holidays count.

FL

Florida

STATE 06 • OF 10

**DISCHARGE** **No state deadline.** Federal FLSA standard applies — wages due by the next regular payday.**QUIT** **No state deadline.** Federal FLSA standard applies — wages due by the next regular payday.**REQUIRED FORM** None state-required.**! MOST COMMON TRAP**

Assuming Florida has a state rule when none exists. Wage claims default to the federal standard, but employer-provided benefit policies (PTO payout, severance) are governed by the employee handbook and contract terms — which courts will enforce.

# The Mountain West & *The Pacific.*

STATES 07-08 • CO, WA

**CO**  
Colorado

STATE 07 • OF 10

**DISCHARGE** Immediately, at the moment of termination.

**QUIT** By the next regular payday.

**REQUIRED FORM** Form 22-234 (Notice of Potential Availability of UI Benefits), delivered at separation in hard copy or electronic format.

**! MOST COMMON TRAP**

The immediate-pay rule on involuntary termination — payroll teams accustomed to next-payday timing for other states often miss the Colorado same-day requirement, and accrued vacation must be paid out as wages.

**WA**  
Washington

STATE 08 • OF 10

**DISCHARGE** By the end of the pay period in which separation occurred.

**QUIT** By the end of the pay period in which separation occurred.

**REQUIRED FORM** No state-required at-separation form.

**! MOST COMMON TRAP**

Washington paid sick leave — **unused balances are subject to reinstatement** if the employee is rehired within twelve months of separation, even if balances were not paid out at termination.

# The Mid-Atlantic & *The Upper Midwest.*

STATES 09-10 • NJ, MN



STATE 09 • OF 10

**DISCHARGE** By the next regular payday.

**QUIT** By the next regular payday.

**REQUIRED FORM** BC-10 (Instructions for Claiming Unemployment Benefits), delivered to the employee at separation.

### ! MOST COMMON TRAP

The BC-10 has a **dual delivery requirement** — it must be handed or mailed to the separating employee **AND** submitted electronically to NJDOL via the **Employer Access portal within 7 days** of separation (effective **December 8, 2025**). Applies to **all separations**, not just unemployment-eligible ones.



STATE 10 • OF 10

**DISCHARGE** Within 24 hours of the employee's written demand for payment.

**QUIT** By the next regular payday, or within 20 days of separation, whichever comes first.

**REQUIRED FORM** No state-required at-separation form.

### ! MOST COMMON TRAP

The 24-hour clock on involuntary termination starts **when the employee makes a written demand for payment** — not at the termination itself. Acting on the clock at termination is the safer practice but isn't legally required.

## AT A GLANCE

All ten states. *One table.*

| #  | STATE                      | DISCHARGE<br>final paycheck                 | VOLUNTARY<br>QUIT<br>final paycheck                   | REQUIRED FORM<br>at separation                                 | MOST COMMON TRAP<br>where teams slip                                                                                                                |
|----|----------------------------|---------------------------------------------|-------------------------------------------------------|----------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| 01 | <b>CA</b><br>California    | IMMEDIATE                                   | 72 hours if no notice; last day if 72 hr notice given | DE 2320 + written Notice to Employee per Title 22 CCR § 1089-1 | Waiting-time penalty compounds at daily wage for up to 30 days — state can assess without a claim.                                                  |
| 02 | <b>NY</b><br>New York      | Regular payday                              | Regular payday                                        | IA 12.3 Record of Employment                                   | Required at <b>every</b> separation incl. reduced-hours — missed delivery is a top NY DOL violation.                                                |
| 03 | <b>IL</b><br>Illinois      | At separation if possible, else next payday | At separation if possible, else next payday           | CL1111L pamphlet                                               | Hand-deliver on last day or mail within 5 calendar days — workplace posting does <b>not</b> count.                                                  |
| 04 | <b>MA</b><br>Massachusetts | SAME DAY                                    | Next payday                                           | Form 0590-A within 30 days                                     | Accrued vacation must be paid in full on the day of discharge — strictest in the country.                                                           |
| 05 | <b>TX</b><br>Texas         | 6 calendar days                             | Next payday                                           | NONE TWC poster only                                           | Six-day window runs in <b>calendar days</b> — weekends and holidays count.                                                                          |
| 06 | <b>FL</b><br>Florida       | Next payday<br>FLSA                         | Next payday<br>FLSA                                   | NONE                                                           | No state rule. PTO & severance governed by handbook + contract — courts will enforce.                                                               |
| 07 | <b>CO</b><br>Colorado      | IMMEDIATE                                   | Next payday                                           | Form 22-234 (hard copy or e-)                                  | Same-day rule often missed by teams used to next-payday timing — vacation paid as wages.                                                            |
| 08 | <b>WA</b><br>Washington    | End of pay period                           | End of pay period                                     | NONE                                                           | Unused sick leave <b>reinstates</b> if rehired within 12 months — even if not paid out.                                                             |
| 09 | <b>NJ</b><br>New Jersey    | Next payday                                 | Next payday                                           | BC-10 + electronic to NJDOL                                    | Dual delivery — employee copy + electronic NJDOL <b>Employer Access portal</b> submission within <b>7 days</b> . Applies to <b>ALL</b> separations. |
| 10 | <b>MN</b><br>Minnesota     | 24 hrs from written demand                  | Next payday or 20 days, whichever first               | NONE                                                           | 24-hour clock starts on the employee's <b>written demand</b> , not the termination itself.                                                          |

☒ SAME-DAY / URGENT
 ☐ STATE-ISSUED FORM
 ☐ NO STATE RULE

SOURCE • ARBITER HR



FOR THE OTHER 40 STATES + DC

# When you cross a *state* *line.*

*This is the snapshot. The  
workbook is the source of  
truth.*

This reference covers 10 high-volume states. **The full P1 Final Pay & Termination workbook covers all 50 states + DC** — separation timing variations, every required form by jurisdiction, statutory citations for audit defense, PTO payout treatment, commission and bonus rules, and a fresh edition delivered on the 1st of every month.

P1 • WORKBOOK • 50 STATES + DC

## **Final Pay & *Termination.***

Discharge vs. voluntary quit timing. State-issued separation forms with direct links. PTO payout treatment. Commission and bonus rules. Full statutory citations. **Updated monthly, free for life.**

**\$39**  
One-time